

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

February 23, 2009

The Governing Body of the City of Cheyenne met on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. The pledge of allegiance was recited.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Bob Mason, Assistant City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Spiker, and pursuant to support received by Mr. Brown and Mr. Pierson, agenda item #13 was removed from the Consent Agenda. It was noted that procedurally members did not need to officially provide a "second" to a request to remove consent agenda items. Mr. Spiker moved to approve remaining Consent Agenda items, seconded by Mr. Collins. Motion carried. Voting "yes" – all members of the governing body.

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON FEBRUARY 9, 2009. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON FEBRUARY 17, 2009. Motion (per Consent Agenda) carried.

Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Brown. Mr. Collins and Mr. Valdez each declared a conflict of interest (business interests) and vacated Council Chambers. Motion carried. Voting "yes" – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Collins and Mr. Valdez returned to Council Chambers.

Mayor Kaysen opened and conducted three public hearings for the purpose of receiving comments and input on the following:

A public hearing to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exists for the property described as Lot 5, Block 2, Seaver's Subdivision, Laramie County, WY. Don Threewitt, Urban Planning Office, reviewed requirements and compliance of conditions contained in Wyo. Stat. §15-1-402, including specific information indicating compliance with Wyo. Stat. §15-1-402(a)(i) through (vi). There being no further comments or input and purpose of the public hearing having been met, Mayor Kaysen closed the hearing.

A public hearing for renewal of existing City liquor licenses (retail, restaurant, limited retail, resort, microbrewery and bar and grill) filed with the City Clerk's Office. City Clerk Carol Intlekofer noted for the record that 3 restaurant liquor licensees did not file for renewal and advised per State Statute requirements, Shadows Brewing Co., LLC, Microbrewery Permit application, has not yet been certified as complete by the Wyoming Liquor Division as the statutory minimum malt beverage production quantity for the current licensing term had not been met. She stated she had been advised that Shadow Brewing Co. intends to meet the production requirement by March 31, 2009, therefore, meeting renewal requirements. She further advised a request to approve the renewal application contingent upon notification from the Liquor Division that the application has been certified as complete will be made at the upcoming Finance Committee meeting when renewal applications will be reviewed for recommendation. Bryan Grzegorzcyk, owner of Alf's Pub and Package Liquor, and representative for Airport Golf Course, thanked governing body members for the opportunity to hold a liquor license in conjunction with his business within the City. Upon inquiry, Chief Bob Fecht, Police Dept., reviewed compliance checks conducted during the current licensing year, stating the last checks resulted in an 87% approval rate, which he believes is the highest in the state. There being no further comments or input and purpose of the public hearing having been met, Mayor Kaysen closed the hearing and referred the applications to Finance Committee.

A public hearing for a restaurant liquor license application filed with the City Clerk's Office for Pizza Hut of Cheyenne, Inc. d/b/a Pizza Hut/Wing Street, 4503 Western Way, Cheyenne, WY. There being no comments or input and purpose of the public hearing having been met, Mayor Kaysen closed the hearing and referred the application to Finance Committee.

"AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM CB COMMUNITY BUSINESS DISTRICT TO HR-2 HIGH-DENSITY RESIDENTIAL-DEVELOPING DISTRICT FOR LOT 6, BLOCK ONE, GATEWAY SOUTH, CHEYENNE, WYOMING (LOCATED EAST OF WALTERSCHEID BOULEVARD AND SOUTH OF WEST FOX FARM ROAD)." Reporting for Public Services Committee, Mr. Brown moved to approve on third and final reading, seconded by Dr. Rinne. Motion carried. Voting "yes" – all members of the governing body. (#3842)

"AN ORDINANCE CREATING SECTION 10.24.170, DISTRACTIVE DRIVING PROHIBITED; EXCEPTIONS, OF CHAPTER 10.24, RULES OF THE ROAD GENERALLY, OF TITLE 10, VEHICLES AND TRAFFIC, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING." John Fafoutakis and Ronald Nickle expressed concerns with how comprehensive the ordinance will be and law enforcement concerns; types of driver distractions; legislating citizens' freedom and rights; message texting, and responsibility of drivers for alertness and safe driving habits. Mr. Brown moved to approve on second reading, seconded by Mr. Collins. Mr. Pierson moved to amend by substitute ordinance, seconded by Mr. Collins. It was advised the substitute removes eating and drinking from the list of distraction types on page 1 and removes law enforcement personnel from the exemptions. Mr. Pierson moved to amend Section A, Item 5, of the substitute ordinance to add language after "Observing a television or video display" by inserting OTHER THAN GPS NAVIGATION SYSTEMS", seconded by Mr. Collins. Mr. Fafoutakis suggested a further amendment to Section A to include non-alcoholic beverages. Chief Bob Fecht, Police Dept., spoke in support of the amendment, stating the department has a

policy relative to officers and operating in-car computers while driving, and explained offenses cited under the ordinance would constitute a secondary offense, not primary offense, meaning there must be other probable cause(s) or reason to pull a driver over. Discussion included the following topics: GPS systems, secondary offense violation, and various types of driver distractions. Upon inquiry for the City Clerk's record, it was clarified the proposed substitute ordinance on the floor was the version dated Feb. 20, 2009 by the City Attorney staff. Motion to amend Section A, Item 5 of the substitute carried. Voting "yes" – all members of the governing body. Upon inquiry regarding GPS navigation systems, Mr. Nickle discussed Bluetooth communication technology relative to GPS. Discussion continued on other possible driver distractions not set out within the ordinance, definition of distracted driver, and the phrase "including, but not limited to, the following" in Section A. Mr. Brown moved to further amend the substitute by striking the word "computers" in Section A, Item #1, seconded by Ms. Broyles. Upon inquiry, Chief Fecht advised since the installation of in-car cameras and computers, officers' operational accident rates has not changed. Discussion followed on the purpose of the proposed amendment, and distractions constituting a secondary offense. Mr. Brown withdrew his motion to amend with concurrence by Ms. Broyles as second to the motion. Mayor Kaysen clarified the motion to amend had been withdrawn. Mr. Collins moved to further amend the substitute by striking the phrase "including, but not limited to, the following:" and Items 1, 2, 3, 4 and 5 under Section A, seconded by Dr. Rinne. Discussion on the amendment involved the overall purpose of the ordinance, which is to avoid individuals from being distracted while driving. Mr. Brown raised a point of clarification questioning whether the proposed amendment, if approved, would also require an amendment to Section F, definition of terms. Mr. Collins modified his previous motion to amend, with concurrence by Dr. Rinne as second to the motion, as follows: Strike the wording "including, but not limited to, the following:" and delete Items 1 through 5 in Section A, and remove Items 1, 2, 3, 5, and 6 in Section F. Brian McNutt, member of Laramie County Amateur Radio Emergency Services and Amateur Radio Civil Emergency Services (ham radio operators), expressed concerns the ordinance may pose regarding emergency reporting (i.e. spotters reporting severe weather and assisting with community emergency and disaster communications) provided by members to local public safety agencies and the National Weather Service. He requested hand held radios be excluded from the ordinance. Upon inquiry, Chief Fecht reviewed evidentiary and prosecution issues involving law enforcement if the ordinance were implemented. Motion to amend carried. Voting "yes" – all members of the governing body. Upon inquiry regarding the term "section" as used in Section D (i.e. No motor vehicle shall be halted solely for a violation of this section), Bob Mason, Assistant City Attorney, advised the word could be changed to "ordinance." Mr. Pierson moved to further amend the substitute ordinance by changing the word "section" in Section D to "ordinance," seconded by Mr. Brown. Motion to amend carried. Voting "yes" – all members of the governing body. Ms. Ash moved to further amend the substitute by striking the phrase "As used in this section, the following terms are defined:" under Section F and the number 4, leaving the definition of Distracted Driver as the only wording under Section F, seconded by Dr. Rinne. Upon inquiry, Assistant Attorney Mason suggested leaving the introductory phrase within Section F for any future clarifications or definitions. Ms. Ash modified her previous motion to amend, with concurrence by Dr. Rinne as second to the motion, by leaving the introductory phrase in Section F as it exists and renumbering Item 4, definition of distracted driver, to Item 1 under Section F. Motion to amend carried. Voting "yes" – all members of the governing body. Motion to amend by substitute ordinance as amended (four amendments) carried. Voting "yes" – all members of the governing body. Main motion as amended by substitute (as amended) carried. Voting "yes" – all members of the governing body.

“A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR PROPERTIES SITUATED IN A PORTION OF SECTION 1, 12, AND 17, T.13N., R.67W., 6TH P.M., LARAMIE COUNTY, WY (LOCATED SOUTH OF I-80 AND PREDOMINANTLY EAST OF SOUTHWEST DRIVE.” Mayor Kaysen stated the item was being withdrawn from the agenda at the request of the developer.

[CA] “A RESOLUTION RE-APPROPRIATING THE FISCAL YEAR 2009 BUDGET OF THE CITY OF CHEYENNE ACCORDING TO THE PROVISIONS OF WYO. STAT. §16-4-112 AND §16-4-113.” Motion (per Consent Agenda) carried. (#5103)

“A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR ZOEYLYNN SUBDIVISION, A REPLAT OF LOT 10, BLOCK 4, GOULD SUBDIVISION, CHEYENNE, WYOMING (LOCATED AT THE NORTHWEST CORNER OF THE INTERSECTION OF EVERTON DRIVE AND HARMON AVENUE).” Mr. Spiker declared a conflict of interest and indicated he would not be participating in the discussion or voting, and vacated Council Chambers. Mr. Brown moved to adopt, seconded by Mr. Pierson. Motion carried. Voting “yes” – all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Spiker returned to Council Chambers. (#5104)

[CA] “A RESOLUTION CERTIFYING THAT THE GOVERNING BODY OF THE CITY OF CHEYENNE IS IN AGREEMENT WITH THE LARAMIE COUNTY BOARD OF COMMISSIONERS AS TO THE MARCH 2009 APPLICATION FOR THE COUNTYWIDE CONSENSUS BLOCK GRANT (2009-2010 FISCAL BIENNIUM) TO THE STATE LOAN AND INVESTMENT BOARD” -- referred to Finance Committee (sponsor - Mr. Collins).

[CA] “A RESOLUTION RATIFYING THE LISTING OF CHEYENNE’S MOORE HAVEN HEIGHTS HISTORIC DISTRICT TO THE NATIONAL REGISTER OF HISTORIC PLACES AND AUTHORIZING THE ADDITION OF THE PROPERTIES CONTAINED THEREIN TO THE CITY’S INVENTORY OF HISTORIC STRUCTURES” -- referred to Public Services Committee (sponsors - Ms. Ash, Ms. Broyles, Mr. Collins and Mr. Valdez).

[CA] “A RESOLUTION AUTHORIZING THE CITY OF CHEYENNE, WYOMING, TO LEASE, WITH AN OPTION TO PURCHASE CERTAIN EQUIPMENT” -- referred to Finance Committee (sponsor - Mr. Spiker).

PRELIMINARY PLATS/PRELIMINARY ZONE CHANGES:

Preliminary Plat for Classic Subdivision, a replat of Lot 1, Block 1, Griffin Addition, Cheyenne, Wyoming (located west of Missile Drive, between Old Happy Jack and Westland Roads). Mr. Brown moved to acknowledge receipt with staff recommendation #2, seconded by Mr. Pierson. Upon inquiry, Tom Mason, Metropolitan Planning Organization Director, indicated MPO staff review comments were awareness issues for the developer in conjunction with the proposed final plat. Motion carried. Voting “yes” – all members of the governing body.

LEASES/CONTRACTS/LEGAL:

[CA] Contract between the City of Cheyenne, Police Department, and PropertyRoom.com, Inc., a Delaware Corporation, for property disposition services to dispense of unclaimed property being stored in the evidence room. Motion (per Consent Agenda) carried. (#5349)

Professional Services Agreement between the City of Cheyenne and AVI, P.C. for design services for the Carey Avenue and Pioneer Avenue Rehabilitation Project (2007-2010 1% Sales Tax). Mr. Valdez reported there was no recommendation on the item from Finance Committee. Mr. Collins moved to approve, seconded by Mr. Pierson. Upon inquiry, Bruce Perryman, AVI Engineering, reviewed elements and approaches the engineering firm would be utilizing in conjunction with project design services, including communication and assistance to businesses affected by the project area and anticipated design issues, and provided information on services to be provided; measures to minimize traffic and disturbance on the streets; AVI's urban renewal construction experience and expertise; consulting time contained within the proposal submitted, and the firm's role in providing construction management assistance to the City. Mr. Perryman further reviewed components of the project regarding underground and surface components, particularly in this area of downtown, and cost adjustments for streetscape and lighting components. Upon inquiry, Doug Vetter, Interim City Engineer, provided information on City staff project management and inspections responsibilities vs. consultant assistance services to be provided by AVI, and, in response to query, advised that depending upon the complexity of a project and staff availability, construction management services for future projects may be able to be provided by staff. Discussion followed on the proposal(s) review and selection committee process involving the recommendation by the committee of a vendor. Upon inquiry, Mr. Perryman stated it is hoped that most of the work can involve a grind and overlay process but that each block will have to be evaluated individually to determine whether reconstruction vs. an overlay technique can be utilized, and discussed use of Presidential stimulus funds, if received, for streetscaping items. Upon inquiry regarding aspects involving services provided on a previous Capitol Avenue reconstruction project, Mr. Perryman reviewed issues affiliated with the previous project regarding concrete cracking of curb, gutters and bump-outs, and subsequent design changes. Motion carried. Voting "yes" – all members of the governing body. (#5350)

CHANGE ORDERS/CONTRACT MODIFICATIONS:

[CA] Contract Modification No. 1 to Contract No. 5203 between the City of Cheyenne and Simon Contractors to install a pump system at the East Cheyenne Greenway Extension Project, U.S. 30 below grade crossing (1% Specific Purpose Sales and Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$70,810.00). (#5203)

[CA] Contract Modification No. 1 to Contract No. 5056 between the City of Cheyenne, Sanitation Dept., and Magic City Enterprises for sorting, processing and marketing of recyclable materials -- referred to Finance Committee.

CONSIDERATION OF BIDS:

[CA] Consideration of Bid #R-17-09 for furnishing one new 2009 extended cab and chassis with platform lift installed from Ameri-Tech Equipment of Casper, WY, for the Traffic Dept. (2003-2006 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$103,857.74).

[CA] Consideration of Bid #R-19-09 for the purchase of 120 MSA carbon cylinder bottles and to trade 94 outdated cylinder bottles to Front Range Fire Apparatus of Longmont, CO, for the Fire & Rescue Dept. Motion (per Consent Agenda) carried (amount not to exceed \$110,917.78).

[CA] Consideration of Bid #R-20-09 for the surplus sale of one used Troxler Electronic Road Reader utilized by the Construction Dept. to Troxler Electronic Labs of Research Triangle Park, NC. Motion (per Consent Agenda) carried (\$1,000.00).

APPOINTMENTS:

Appointments of Richard Wiederspahn to the Laramie County Early Education and Development Joint Powers Board, Terry Roush to the Housing and Community Development Advisory Council, and Teresa Garrido to the Public Transit Advisory. Mr. Spiker moved to approve, seconded by Mr. Collins. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

ANNOUNCEMENTS/REPORTS/MOTIONS:

Consideration of proposal recommended by the Art In Public Places Committee to acquire artwork to be known as “Iron Horse” from Lyle Nichols, Palisades, CO, for placement at the Depot Plaza. John Fafoutakis spoke in opposition to expending taxpayer funds toward public artwork due to national economic conditions. Mr. Valdez moved to approve in an amount not to exceed \$30,000.00, seconded by Mr. Collins. Comment was made relative to a previous agenda item involving re-appropriation of the budget and prioritizing. Upon inquiry regarding placement of the proposed artwork in the Depot Plaza, John Goodier, Chairman, Arts in Public Places Committee (AIPPC), advised the concept of the location was due to the sculpture’s theme involving transportation, stating the artwork composition includes utilization of railroad items/materials, and clarified the photo depiction that had been submitted with the agenda item (on file with office of City Clerk) is not the final rendition of the sculpture and confirmed the sculpture will provide for safe interaction with the public. He explained selection of the art piece for recommendation; confirmed that no contract with the sculptor has yet been entered into; stated the AIPPC considered the proposed sculpture as a “one of a kind type concept” and, therefore, did not request proposals, and provided information on the history of AIPPC ordinance, funding and budgetary earmarking. Mr. Fafoutakis reiterated his previous position in opposition to the proposed expenditure. Discussion included creation of the AIPP program, Committee role and program funding for artwork acquisitions. Upon inquiry, Barb Dorr, City Treasurer, explained the budget fund specific to the AIPP program, which is not a general operating fund line item, and explained how transfers into the AIPP fund are made (i.e. budget re-appropriation) following approval of the annual fiscal year budget. Comments in support of the proposal and the AIPP program were made. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no”.

Announcement was made of a public hearing to be held March 9, 2009 at 6:00 p.m. in City Council Chambers for a transfer of ownership for a retail liquor license application filed with the City Clerk’s Office for Outback Steakhouse of Florida, LLC d/b/a Outback Steakhouse,

1626 Fleischli Parkway, Cheyenne, WY (License currently held by Outback/Denver-I, L.P. d/b/a Outback Steakhouse, 1626 Fleischli Parkway, Cheyenne, WY).

Announcement was made of a public hearing to be held March 9, 2009 at 6:00 p.m. in City Council Chambers for a restaurant liquor license application filed with the City Clerk's Office for Jose Luis Gomez-Salcedo d/b/a Los 3 Caballos, 1907 E. Lincolnway, Cheyenne, WY.

Announcement was made of the appointment of Jason Paiz to the Police Civil Service Commission, Ann Redman to the Personnel Commission, and Mark Archer to the Contractor Licensing Board, to be confirmed March 9, 2009.

OTHER CITY BUSINESS:

John Fafoutakis discussed the local cost of fuel, and expressed his opinion in opposition to public artwork expenditures during current economic conditions.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:51 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
March 5, 2009